

SENATE No. 2495

The Commonwealth of Massachusetts

PRESENTED BY:

Michael F. Rush

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ensuring the fair treatment of military service members and veterans.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Michael F. Rush</i>	<i>Norfolk and Suffolk</i>	
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/22/2025</i>

SENATE No. 2495

By Mr. Rush, a petition (accompanied by bill, Senate, No. 2495) of Michael F. Rush and Paul
McMurtry for legislation to ensure the fair treatment of military service members and veterans.
Veterans and Federal Affairs.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2352 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ensuring the fair treatment of military service members and veterans.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority
of the same, as follows:*

1 SECTION 1. Section 1 of chapter 115 of the General Laws is hereby amended by
2 inserting after the definition of “Secretary” the following definition:-

3 "Uniformed services", shall have the same meaning as in 38 U.S.C. section 4303(16) and
4 shall include: (i) the armed forces of the commonwealth, including the state defense force or
5 similar organization composed as permitted by law; (ii) the state staff when engaged in duty
6 under this chapter or Title 32 of the United States Code; or (iii) the armed forces of another state
7 or territory when ordered to active duty under appropriate authority.

8 SECTION 2. Said chapter 115 is hereby further amended by inserting after section 2D
9 the following section:-

Section 2E. Uniformed Services Employment and Reemployment Rights

(a) There shall be a veteran employment and reemployment rights division within the executive office of veterans services to assist veterans and service members with employment disputes. There shall be within the division: (i) intake officers to serve as the designated initial point of contact for veterans and service members within the division; (ii) investigators to conduct the division's formal inquiries or investigations, as necessary; and (iii) mediators to act as an intermediary between veterans and service members and employers.

(b) Under the direction of the secretary of the executive office of veterans services, the veteran employment and reemployment rights division shall: (i) employ intake officers to meet with veterans and service members, gather preliminary evidence and facts from the service member or veteran, and gather preliminary evidence on military service, employment, and reemployment; (ii) employ investigators to contact employers and military components for the purpose of gathering pertinent evidence; (iii) conclude whether there was improper conduct in violation of Sections 4301 to 4333, inclusive, of title 38 of the United States Code, the Uniformed Services Employment and Reemployment Rights Act or the General Laws; and (iv) employ mediators to contact the employer and veteran to offer mediation to resolve disputes and correct any improper conduct.

(c) If mediation under this section is unsuccessful, the Executive Office of Veterans Services shall refer the case to the attorney general for further action.